

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CHERELLE JUNE SANTIAGO-FROHLICH,

Petitioner

VS.

VICTOR ANTHONY MASON JR,

Respondent

) Case Number: FDV-18-813980

) Hearing Date: September 17, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER SET ASIDE OF 06/24/2026 DOMESTIC VIOLENCE RESTRAINING
ORDER AFTER HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) On 6/05/2026, Petitioner filed a Request for Domestic Violence Restraining Order.
- 2) On 6/09/2026, Petitioner's Request for Domestic Violence Restraining Order was scheduled for hearing on 6/24/2026. All temporary orders were granted by Judge Roger C. Chan.
- 3) On 6/24/2026, Petitioner filed a proof of service. Respondent was served with the Request for Domestic Violence Restraining order and other attachments. Deputy S. White served Respondent on 6/16/2026.
- 4) On 6/24/2026, Petitioner's restraining order was granted by presiding Judge Bobby P. Luna. The restraining order is set to expire on 6/24/2031.
- 5) On 8/03/2026, Respondent filed a Request to Set Aside Petitioner's Domestic Violence Restraining Order. Respondent alleges that Respondent mistakenly believed the hearing was scheduled for 6/26/2026 rather than 6/24/2026. Respondent appeared on 6/26/2026. Respondent requests the opportunity to be heard regarding the matter adjudicated on 6/24/2026.

1 **B. Findings and Order**

- 2 1) The Court GRANTS Respondent's Motion to Set Aside the Restraining Order After Hearing filed
3 June 24, 2026. The Court finds that the moving party has made a sufficient showing under
4 California Code of Civil Procedure section 473(b) on the basis of inadvertence and excusable
5 neglect.
- 6 2) The Court will revive the Temporary Restraining Order (TRO) filed on June 9, 2026 and issue a
7 1st Amended TRO incorporating all of the orders previously set forth in the TRO filed June 9,
8 2026. It will remain the operative order, until the formal hearing on Petitioner's request for
9 DVRO filed on May 22, 2026.
- 10 3) The Court will set the matter for hearing on **October 7, 2026, at 8:30 a.m.**, for the parties to
11 attend orientation and mediation. The Court will then hear Petitioner's request for the issuance of
12 a DVRO.
- 13 4) The Court will prepare the Amended TRO and mail it to the parties.
- 14
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29